

25CHCV04489 25CHCV04489

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PLAINTIFF'S MOTIONS TO COMPEL FURTHER RESPONSES TO FORM INTERROGATORIES, SPECIAL INTERROGATORIES, REQUESTS FOR

PRODUCTION, AND REQUESTS FOR ADMISSION, SET ONE

Motions filed on July 2, July 6, and July 7, 2026.

MOVING PARTY: Avetik Hovhannisyan

RESPONDING PARTY: Boris Sharoyan

NOTICE: OK

RELIEF REQUESTED: Orders compelling further responses to Form Interrogatories, Special Interrogatories, Requests for Production, and Requests for Admission, Set One, and monetary sanctions.

RULING: The motions are granted in part and denied in part. The parties' requests for monetary sanctions are denied.

BACKGROUND

On December 17, 2025, Avetik Hovhannisyan (Plaintiff) filed a Complaint against Boris Sharoyan (Defendant) alleging motor vehicle negligence. Defendant filed an Answer on April 1, 2026.

On July 2, 2026, Plaintiff filed motions to compel further responses to Form Interrogatories and Special Interrogatories, Set One, with separate statements, declarations, and exhibits. On July 6, 2026, Plaintiff filed a motion to compel further responses to Requests for Production, Set One, with a separate statement, declaration, and exhibits. On July 7, 2026, Plaintiff filed a motion to compel further responses to Requests for Admission, Set One, with a separate statement, declaration, and exhibits.

Defendant filed oppositions to the Form and Special Interrogatory motions on July 20, 2026, the Requests for Production motion on July 23, 2026, and the Requests for Admission motion on July 27, 2026. Each opposition was accompanied by declarations and exhibits. On July 24, 2026, Plaintiff filed a joint reply in support of the Form and Special Interrogatory motions. A subsequent Joint Reply was filed August 5, 2026.

DISCUSSION

Timeliness

Plaintiff argues that Defendant's July 20, 2026 oppositions to the Form and Special Interrogatory motions were untimely. (Joint Reply at 2.) Those motions were originally set for hearing on July 31, 2026. Opposition papers were due nine court days before the hearing. (Code Civ. Proc., § 1005, subd. (b).) July 20, 2026 was nine court days before the original hearing. The oppositions were timely and are considered.

Waiver of Objections

A party that fails to serve timely responses to interrogatories, inspection demands, or requests for admission generally waives any objection. (Code Civ. Proc., §§ 2030.290, subd. (a), 2031.300, subd. (a), 2033.280, subd. (a).) Sections 1011 and 1013 apply to discovery. (Code Civ. Proc., § 2016.050.) When a party has not provided an office address in a document filed and served in the action, service by mail must be addressed to that party's residence. (Code Civ. Proc., § 1013, subd. (a).)

Plaintiff mailed the discovery to Defendant at 10433 Hayvenhurst Avenue on January 20, 2026. Defendant had not appeared or provided an address in any filed and served document. The proof of service for the discovery establishes that it was mailed to Hayvenhurst. It does not establish that Hayvenhurst was Defendant's residence.

Plaintiff contends that the mailing was proper because the same address had been used for substituted service of the Summons and Complaint. When defense counsel advised Plaintiff's counsel that Defendant had never resided at Hayvenhurst and had not received the discovery, Plaintiff's counsel responded: "I never stated that your client resides at that address. As you acknowledged, service was effectuated via substituted service." (Birch Decl., Ex. A.)

Defendant declares that he has lived at the same address for six years, has never lived at Hayvenhurst, did not receive the discovery, and received no documents from the property's residents. (Sharoyan Decl. ¶¶ 4-7.) Defendant also stated in response to Form Interrogatory No. 2.5 that he resided at 17838 Mountain Ranch Road from 2020 through the present, an address different from the Hayvenhurst address to which Plaintiff mailed the discovery. Plaintiff's assertion in reply that Defendant owns the Hayvenhurst property does not establish that he resided there.

The Court therefore finds that the January 20 mailing did not comply with section 1013. After Defendant appeared on April 1, 2026, Plaintiff transmitted the discovery to defense counsel. The parties ultimately agreed that responses would be due May 22, 2026, and Defendant served his responses that day. Because the January mailing did not effect service and Defendant responded by the subsequently agreed deadline, Defendant did not waive his objections and was not required to seek relief from waiver.

Meet and Confer

A meet-and-confer declaration must state facts showing a reasonable and good-faith attempt, either in person, by telephone, or by videoconference, to resolve each issue presented by the motion. (Code Civ. Proc., § 2016.040, subd. (a).)

Here, Defendant argues that Plaintiff did not comply with section 2016.040 because counsel communicated only through letters and emails and did not attempt to confer in person, by telephone, or by videoconference. The record supports Defendant's position. Plaintiff's declaration describes extensive written correspondence but does not identify any attempt to confer through one of the methods required by section 2016.040, subdivision (a).

The written correspondence nevertheless identified the disputed requests and the parties' positions. It also shows that the parties had reached an impasse concerning waiver and the adequacy of the responses. The motions are fully briefed, and requiring another conference at this stage would not materially assist resolution of the disputes. The Court therefore reaches the merits. Counsel must comply with all requirements of section 2016.040 before filing any future discovery motion.

Motion to Compel Further (Requests for Admission – Set One)

A party may request an admission concerning a fact, an opinion relating to fact, or an application of law to fact. (Code Civ. Proc., § 2033.010.) Each request must be directed to one matter. (Code Civ. Proc., § 2033.060, subd. (f).) Each answer must be complete and straightforward. A party claiming insufficient information must make a reasonable inquiry, and any nonobjectionable portion must be answered. (Code Civ. Proc., §§ 2033.220, 2033.230, subd. (a).) An ambiguity objection is valid only if the question or request is wholly unintelligible or precludes an intelligent reply. When a request is somewhat ambiguous, but the nature of the information sought is apparent, the request must be answered. (*Deyo v. Kilbourne* (1978) 84 Cal.App.3d 771, 783.) Defendant bears the burden of justifying each objection. (*Fairmont Ins. Co. v. Superior Court* (2000) 22 Cal.4th 245, 255.)

Request for Admission No. 2 asks Defendant to admit that he has no facts supporting a contention that Plaintiff is untruthful about his injuries. Defendant asserted relevance, improper-use, vagueness, ambiguity, and compound objections without providing a substantive response. (RFA Sep. Stmt. at 2.) Here, the objections are unsubstantiated. The absence of facts supporting a challenge to Plaintiff's claimed injuries bears on damages and is a proper subject for an admission. The reference to "her injuries" is an obvious typographical error, and Defendant's prior admission that Plaintiff was physically injured shows he understood the term "injuries." The request concerns one contention and permits an intelligent reply. Defendant must admit, deny, qualify his response, or state that he cannot admit or deny after reasonable inquiry. The objections are **OVERRULED**. The motion is granted as to No. 2.

Requests for Admission Nos. 6, 7, and 8 ask Defendant to admit that he has no facts, witnesses, or documents supporting the affirmative defenses pleaded in his answer. Defendant asserted relevance, improper-use, vagueness, ambiguity, and compound objections. (RFA Sep. Stmt. at 3-4.) Here, Defendant substantiated the compound objections. Each separately pleaded affirmative defense presents a distinct matter and may require a different response. Each request therefore combines multiple matters contrary to section 2033.060, subdivision (f). The motion is denied as to Nos. 6, 7, and 8. The remaining objections are not reached.

Request No. 18 asks Defendant to admit that he was not using "safe driving precautions" when the collision occurred. Defendant asserted compound, overbreadth, vagueness, ambiguity, and relevance objections without providing a substantive response. (RFA Sep. Stmt. at 5.) Here, the objections are unsubstantiated. The request concerns Defendant's driving conduct and is relevant to the negligence claim. The nature of the information sought by "safe driving precautions" is apparent, and the phrase is not so ambiguous that it precludes an intelligent reply. The request concerns one ultimate matter, and Defendant identifies no burden from answering it. The objections are **OVERRULED**. The motion is granted as to No. 18.

In sum, Plaintiff's Motion to Compel Further Responses to Requests for Admission, Set One, is **GRANTED** as to Nos. 2 and 18 and **DENIED** as to Nos. 6, 7, and 8. Defendant shall serve verified, code-compliant further responses to Nos. 2 and 18, without objections, within 20 days of notice of this ruling.

Motion to Compel Further Responses (Special Interrogatories – Set One)

Discovery may be obtained regarding any nonprivileged matter relevant to the subject matter of the action if the matter is admissible or appears reasonably calculated to lead to the discovery of admissible evidence. (Code Civ. Proc., § 2017.010.) An interrogatory may ask whether another party is making a contention or seek the facts, witnesses, and writings on which a contention is based. Such an interrogatory is not objectionable because the answer involves an opinion or contention relating to fact or the application of law to fact. (Code Civ. Proc., § 2030.010, subd. (b).) Each answer must be as complete and straightforward as the information reasonably available permits. If an interrogatory cannot be answered completely, it must be answered to the extent possible after a reasonable and good faith inquiry. (Code Civ. Proc., § 2030.220.) When a question is somewhat ambiguous but the nature of the information sought is apparent, the proper solution is to provide an appropriate response. (*Deyo v. Kilbourne* (1978) 84 Cal.App.3d 771, 783.) Defendant bears the burden of justifying each objection. (*Coy v. Superior Court* (1962) 58 Cal.2d 210, 220-221.)

Special Interrogatories Nos. 13, 14, and 15 ask whether Defendant contends that Plaintiff is untruthful about how the collision occurred and, if so, seek the supporting facts and witnesses. Defendant asserted relevance, prematurity, vagueness, ambiguity, overbreadth, and compound objections without providing substantive responses. (SPROG Sep. Stmt. at 2.) Here, the objections are unsubstantiated. The interrogatories seek Defendant's contention and its factual and evidentiary bases, which are expressly discoverable under section 2030.010, subdivision (b). Plaintiff's account of the collision may bear on the manner and force of impact, injury causation, and damages even though Defendant admits causing the collision. The nature of the information sought by "how this incident occurred" is apparent. Defendant also answered preceding interrogatories using the term "INCIDENT," including Nos. 10 through 12, which employ the same conditional structure. (SPROG Opp., Ex. D at 2-4.) Each interrogatory asks one question, and Defendant identifies no burden from answering it. The early stage of the action and Plaintiff's failure to provide discovery responses did not excuse Defendant from answering based on the information reasonably available after a good faith inquiry. The objections are **OVERRULED**. The motion is granted as to Nos. 13, 14, and 15.

Special Interrogatories Nos. 16, 17, and 18 ask whether Defendant contends that Plaintiff is untruthful about his claimed injuries and, if so, seek the supporting facts and witnesses. Defendant asserted relevance, prematurity, vagueness, ambiguity, overbreadth, and compound objections without providing substantive responses. (SPROG Sep. Stmt. at 2-3.) Here, the objections are unsubstantiated. Whether Defendant disputes Plaintiff's claimed injuries and the basis for that contention directly concern injury causation and damages. The nature of the information sought by "the injuries sustained as a result of this INCIDENT" is apparent. Defendant's admission that Plaintiff was injured also shows that he understood the term "injuries." Each interrogatory asks one question, and Defendant identifies no burden from answering it. If Defendant did not possess sufficient information to make the contention when he served his responses, he was required to answer to the extent possible after a reasonable and good faith inquiry. The objections are **OVERRULED**. The motion is granted as to Nos. 16, 17, and 18.

Special Interrogatories Nos. 24, 25, and 26 ask whether Defendant was involved in any motor vehicle accident during the preceding ten years and, if so, seek the dates and whether Defendant was at fault. Defendant asserted relevance and privacy objections without providing substantive responses. (SPROG Sep. Stmt. at 4-5.) Here, Defendant substantiated the relevance objections. Although discoverable information need not itself be admissible, it must appear reasonably calculated to lead to admissible evidence concerning a disputed claim or defense. The interrogatories encompass every prior accident without regard to its circumstances or similarity to this collision. Defendant has admitted causing this collision and does not dispute liability. Defendant's prior driving conduct therefore has no apparent bearing on the remaining issues of injury causation and damages. Plaintiff's stated purpose of establishing a pattern of negligent driving, habit, or custom does not establish a connection to any remaining disputed issue. The motion is denied as to Nos. 24, 25, and 26. The privacy objections are not reached.

In sum, Plaintiff's Motion to Compel Further Responses to Special Interrogatories, Set One, is **GRANTED** as to Nos. 13 through 18 and **DENIED** as to Nos. 24 through 26. Defendant shall serve verified, code-compliant further responses to Nos. 13 through 18, without objections, within 20 days of notice of this ruling.

Motion to Compel Further (Requests for Production of Documents – Set One)

A motion to compel further responses to inspection demands must set forth specific facts showing good cause justifying the discovery sought. (Code Civ. Proc., § 2031.310, subd. (b)(1).) To establish good cause, the moving party must identify a disputed fact of consequence and explain how the discovery sought will tend to prove or disprove that fact or lead to other evidence that will do so. (Digital Music News LLC v. Superior Court (2014) 226 Cal.App.4th 216, 224, overruled on another ground in Williams v. Superior Court (2017) 3 Cal.5th 531, 557, fn. 8.) The burden is not onerous and may be satisfied by a fact-specific showing of relevance. (TBG Ins. Services Corp. v. Superior Court (2002) 96 Cal.App.4th 443, 448.) The requested documents need not themselves be admissible. (Associated Brewers Distributing Co. v. Superior Court (1967) 65 Cal.2d 583, 586-588.) Once good cause is shown, Defendant bears the burden of justifying each objection or failure to provide a complete response. (Coy v. Superior Court (1962) 58 Cal.2d 210, 220.)

A response must state that the responding party will comply, lacks the ability to comply, or objects to the demand. (Code Civ. Proc., § 2031.210, subd. (a).) A representation of inability to comply must affirm that a diligent search and reasonable inquiry were made and explain why the responding party cannot comply. (Code Civ. Proc., § 2031.230.) A party withholding documents based on privilege or work product must provide sufficient information to evaluate the claim. (Code Civ. Proc., § 2031.240, subd. (c)(1).)

The motion also identifies Requests for Production Nos. 5, 6, 14, 15, 25, and 26. The moving separate statement does not set forth those demands, Defendant's responses, or the reasons for compelling further responses. No relief is ordered as to those requests. (Cal. Rules of Court, rule 3.1345, subd. (c).)

Requests for Production Nos. 8 and 9 seek documents supporting any contention that Defendant was not at fault or negligent in causing the collision. Defendant asserted particularity, improper-contention-discovery, premature-expert-discovery, and work-product objections. (RPD Sep. Stmt. at 3-4.) Plaintiff argues that independent evidentiary documents are not protected merely because counsel collected them and that Defendant must provide a privilege log. Defendant responds that he admitted causing the collision and does not assert the contentions identified in the demands. (RPD Opp. at 6.) Here, Plaintiff has not established good cause. Defendant disclaims the contentions to which the demands are directed, and Plaintiff identifies no disputed fact that the requested documents would tend to prove or disprove. The motion is denied as to Nos. 8 and 9. The objections are not reached.

Requests for Production Nos. 11 and 12 seek Defendant's cellular telephone call, text-message, and usage logs for the day of the collision. Defendant asserted overbreadth, relevance, and privacy objections and provided a representation of inability to comply as to records from five minutes before through fifteen minutes after the collision. (RPD Sep. Stmt. at 6-7.) Plaintiff argues that Defendant should obtain the records from Verizon. Defendant responds that the records are not within his possession, custody, or control. (RPD Opp. at 6.)

Here, Plaintiff has not established good cause. Defendant has admitted that he caused the collision and does not dispute liability. Plaintiff identifies no fact suggesting that Defendant was using his cellular telephone when the collision occurred, and the moving declaration does not connect Defendant's telephone activity to any disputed issue of injury causation or damages. Because Plaintiff has not made the threshold showing of good cause, the Court does not reach Defendant's objections or the adequacy of his representation of inability to comply. The motion is denied as to Nos. 11 and 12.

Requests for Production Nos. 16 and 24 seek Plaintiff's medical records and bills, including records concerning the areas of Plaintiff's body allegedly injured in the collision. Defendant objected that the records are equally or more readily available to Plaintiff through his medical providers, Plaintiff's own files, or Ontellus. (RPD Sep. Stmt. at 8-9.) Plaintiff responds that he did not receive notice of the subpoenas through which Defendant obtained medical records. Defendant maintains that Plaintiff may obtain his records directly from his providers and that notice was provided for subsequently issued subpoenas. (RPD Opp. at 6-7.)

Here, Plaintiff established good cause because the requested medical records bear on injury causation and damages. Defendant substantiated the equally-available objections by identifying Plaintiff's medical providers, Plaintiff's own files, and Ontellus as sources from which Plaintiff may obtain the records. Plaintiff's asserted lack of notice of a subpoena does not address the availability of his medical records from those sources. The motion is denied as to Nos. 16 and 24.

Request for Production No. 21 seeks documents supporting Defendant's purported contention that Plaintiff is untruthful concerning his collision-related injuries. Defendant asserted particularity, improper-contention-discovery, premature-expert-discovery, work-product, relevance, vagueness, ambiguity, overbreadth, and compound objections. Defendant also explained that Plaintiff had not yet provided discovery identifying his claimed injuries and that Defendant had not determined whether Plaintiff was truthful concerning those injuries. (RPD Sep. Stmt. at 9-10; RPD Opp. at 5.) Plaintiff responds that "injuries" is not vague because Defendant previously admitted that Plaintiff was injured.

Here, Plaintiff has not established good cause. Plaintiff's declaration identifies the injuries claimed but does not identify any basis for concluding that Defendant disputes Plaintiff's truthfulness concerning those injuries. Defendant states that, when he served his response, Plaintiff had not provided discovery responses identifying his actual claimed injuries and Defendant had not determined whether to challenge Plaintiff's truthfulness. (RPD Opp. at 5, 7.) Defendant's admission that Plaintiff sustained an injury shows that Defendant understood the term "injuries." It does not show that Defendant contends Plaintiff is untruthful or possesses documents supporting such a contention. Plaintiff identifies no pleading, discovery response, testimony, or other statement in which Defendant challenged Plaintiff's truthfulness concerning his injuries. No. 21 therefore seeks documents supporting a contention that Plaintiff has not shown Defendant made. The motion is denied as to No. 21. The objections are not reached.

In sum, the Motion to Compel Further Responses to Requests for Production, Set One, is DENIED as to Nos. 8, 9, 11, 12, 16, 21, and 24. No relief is ordered as to Nos. 5, 6, 14, 15, 25, and 26.

Motion to Compel Further Responses (Form Interrogatories – Set One)

Each answer to an interrogatory must be as complete and straightforward as the information reasonably available to the responding party permits. If an interrogatory cannot be answered completely, it must be answered to the extent possible. A responding party lacking sufficient personal knowledge must make a reasonable and good-faith effort to obtain the information by inquiry to other persons or organizations, unless the information is equally available to the propounding party. (Code Civ. Proc., § 2030.220.) If an objection is made, the specific ground must be set forth clearly, and any nonobjectionable portion must be answered. (Code Civ. Proc., § 2030.240, subd. (b).) Defendant bears the burden of justifying each objection. (Coy v. Superior Court (1962) 58 Cal.2d 210, 220.)

An interrogatory may not impose a continuing duty to supplement an initially correct and complete answer with later acquired information. Later acquired information may instead be obtained through a supplemental interrogatory. (Code Civ. Proc., §§ 2030.060, subd. (g), 2030.070.) A responding party has no statutory duty to amend or supplement an interrogatory response based on information acquired after the response was served. (Biles v. Exxon Mobil Corp. (2004) 124 Cal.App.4th 1315, 1328.)

Form Interrogatories Nos. 16.3 through 16.8 ask whether Defendant disputes specified injuries, medical services and expenses, lost earnings, property damage, or repair costs claimed by Plaintiff "in discovery proceedings thus far." Defendant responded that each interrogatory was not applicable because Plaintiff had not yet served discovery responses disclosing the corresponding claim. (FROG Sep. Stmt. at 2-4.) Plaintiff argues that the responses became outdated when Plaintiff served discovery responses on May 22, 2026. Plaintiff also argues that Defendant's insurer already possessed Plaintiff's medical records and evaluated his damages through the prelitigation claim process. Defendant responds that the parties served their discovery responses on the same day, that Defendant had not received Plaintiff's responses when his answers were prepared, and that Defendant had no continuing duty to update the answers. (FROG Opp. at 4.)

Here, the responses were complete and straightforward based on the information reasonably available when they were prepared. Each interrogatory is expressly limited to claims disclosed by Plaintiff "in discovery proceedings thus far." The record does not show that Defendant had received Plaintiff's discovery responses before preparing and serving his answers. Plaintiff's prelitigation settlement demand and the records provided to Defendant's insurer were not disclosures made in discovery proceedings. Plaintiff's later service of discovery responses did not retroactively render Defendant's initially complete responses deficient. Defendant had no statutory duty to update the responses based on the subsequently served discovery. Plaintiff may obtain updated information through a supplemental interrogatory. The motion is denied as to Nos.

16.3 through 16.8.

Form Interrogatory No. 17.1 requires Defendant, for each request for admission not answered with an unqualified admission, to identify the request and state the supporting facts, persons, and documents. Defendant identified Requests for Admission Nos. 2, 6, 7, 8, and 18 but responded to the remaining subparts only that "Proper objections are asserted." (FROG Sep. Stmt. at 5.) Plaintiff argues that the response does not provide the information requested. Defendant responds that objections are permissible discovery responses and were not waived. (FROG Opp. at 3.)

Here, Defendant's statement that "Proper objections are asserted" neither answers subparts (b) through (d) nor clearly states a specific objection to Form Interrogatory No. 17.1. Defendant's argument that objections are permissible in principle does not cure the deficiency. Defendant neither stated a specific objection to No. 17.1 nor answered its subparts and therefore did not carry his burden of justifying the blanket response.

The Court has overruled Defendant's objections to Requests for Admission Nos. 2 and 18 and ordered substantive further responses. If Defendant's further response to either request is anything other than an unqualified admission, Defendant must answer each subpart of Form Interrogatory No. 17.1 concerning that request. To the extent Defendant's statement was intended as an objection to No. 17.1, the objection is **OVERRULED**. The motion is granted as to No. 17.1 insofar as it concerns Requests for Admission Nos. 2 and 18.

The Court denied the motion to compel further responses to Requests for Admission Nos. 6, 7, and 8 after finding that Defendant substantiated the compound objections. No further response to Form Interrogatory No. 17.1 is required concerning those requests. The motion is denied as to No. 17.1 insofar as it concerns Requests for Admission Nos. 6, 7, and 8.

In sum, the Motion to Compel Further Responses to Form Interrogatories, Set One, is granted in part as to No. 17.1 concerning Requests for Admission Nos. 2 and 18. The motion is denied as to Nos. 16.3 through 16.8 and as to No. 17.1 concerning Requests for Admission Nos. 6, 7, and 8. Within 20 days, Defendant shall serve a verified, code-compliant further response to No. 17.1 consistent with his further responses to Requests for Admission Nos. 2 and 18. If either response is anything other than an unqualified admission, Defendant shall answer all applicable subparts of No. 17.1 concerning that request.

Sanctions

The statutes governing these motions require monetary sanctions against a party or attorney who unsuccessfully makes or opposes a motion to compel further responses unless the party acted with substantial justification or other circumstances make sanctions unjust. (Code Civ. Proc., §§ 2030.300, subd. (d), 2031.310, subd. (h), 2033.290, subd. (d).)

Here, Plaintiff seeks \$1,800 plus filing fees on each motion. In each moving declaration, counsel claims four hours at \$450 per hour. (Darbinyan Decls. ¶¶ 15-16.) Defendant seeks \$860.85 on each motion based on four hours preparing each opposition, one anticipated hour for the hearing, and a \$60 filing fee. (Birch Decls. ¶ 11.)

Plaintiff did not comply with section 2016.040. Plaintiff nevertheless prevailed on portions of three motions, and Defendant had substantial justification for disputing waiver and maintaining several objections that the Court upheld. Although Defendant prevailed on the Requests for Production motion, Plaintiff raised substantially justified disputes concerning the adequacy of Defendant's responses and the availability of the requested records. Given the results and the procedural history, the Court finds that the parties acted with substantial justification or that other circumstances make sanctions unjust.

The parties' requests for monetary sanctions are denied

CONCLUSION

Plaintiff's Motion to Compel Further Responses to Requests for Admission, Set One, is GRANTED as to Nos. 2 and 18 and DENIED as to Nos. 6, 7, and 8.

Plaintiff's Motion to Compel Further Responses to Special Interrogatories, Set One, is GRANTED as to Nos. 13 through 18 and DENIED as to Nos. 24 through 26.

Plaintiff's Motion to Compel Further Responses to Requests for Production, Set One, is DENIED as to Nos. 8, 9, 11, 12, 16, 21, and 24. No relief is ordered as to Nos. 5, 6, 14, 15, 25, and 26.

Plaintiff's Motion to Compel Further Responses to Form Interrogatories, Set One, is GRANTED as to No. 17.1 concerning Requests for Admission Nos. 2 and 18. The motion is DENIED as to Nos. 16.3 through 16.8 and as to No. 17.1 concerning Requests for Admission Nos. 6, 7, and 8.

Within 20 days of notice of this ruling, Defendant shall serve verified, code-compliant further responses to Requests for Admission Nos. 2 and 18 and Special Interrogatories Nos. 13 through 18, without the objections overruled herein. Defendant shall also serve a verified, code-compliant further response to Form Interrogatory No. 17.1, without the objection overruled herein, consistent with his further responses to Requests for Admission Nos. 2 and 18. If either response is anything other than an unqualified admission, Defendant shall answer all applicable subparts of Form Interrogatory No. 17.1 concerning that request.

The parties' requests for monetary sanctions are DENIED.